

**CV-23-004787 HOSKINSON, ROY BERT, Jr vs LUMAUIG, BRANDON -
Plaintiff's Motion to Set Aside Summary Judgment Pursuant to California
Code of Civil Procedure Section 473(B) – DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court notes that the judgment which is the subject of the instant motion is also currently the subject of a pending appeal. Under the circumstances, the Court lacks jurisdiction to rule on the merits of the motion herein. (Code Civ. Proc. § 916(a).) Therefore, the Court must deny the motion on that ground. Additionally, even if the instant motion were properly before the Court at this time, the Court would have serious doubts as to the viability of the same, in view of the fact that the judgment resulted from the Court's substantive determination regarding the statute of limitations defense to the action.

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